

		Since Plaintiff failed to meet her burden, the Court shall grant the Law Firm Defendants' anti-SLAPP motion. Moving parties are ordered to give notice.
12	Cadence Bank N.A. vs. Richardson	OFF CALENDAR
13	Carrillo vs. Bryant	TENTATIVE RULING: <u>Motion for Summary Judgment or Summary Adjudication</u> Defendant Curtis Bryant moves for summary judgment on the Second Amended Complaint (SAC) of Plaintiff Lauretta Joyce Carrillo. For the following reasons, the motion is DENIED. Defendant moves in the alternative for summary adjudication on each cause of action. For the following reasons, the alternative motion is DENIED as to the fifth cause of action and GRANTED as to the first, second, third, fourth, and sixth causes of action. <u>Statement of Law</u> Under Code of Civil Procedure section 437c(c), a summary judgment or summary adjudication motion shall be granted if all the papers submitted show there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. A defendant meets its initial burden by showing that the plaintiff cannot prove its causes of action, or by establishing a complete defense to the plaintiff's causes of action. (Code Civ. Proc., 437c(p)(2).) If a defendant does not meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840.) If the defendant meets this initial burden, the burden shifts to the plaintiff to produce evidence demonstrating the existence of a triable issue of material fact. (Code Civ. Proc., § 437c(p)(2); <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851.) A motion for summary adjudication may be granted only "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c(f)(1).)

First Cause of Action (Premises Liability)

The motion for summary adjudication of the first cause of action is GRANTED.

The SAC alleges Defendant breached his duty to properly remove and/or abate the unreasonably dangerous conditions on the premises. (SAC ¶ 20.) Plaintiff alleges those unsafe and dangerous conditions on the premises include, but are not limited to: trees that needed to be cut down; undergrowth with loose branches spread across the property; and old appliances, old dishes, old utensils, old tables, old furniture, an old mattress, miscellaneous trash, five-gallon buckets of old food, an old garbage disposal, and antique tractors—all spread across the property and usually obscured and/or hidden from view in weeds that were at least 1.5 feet high. (SAC ¶ 15.) As a result, Plaintiff suffered severe and permanent injuries to her person. (SAC ¶ 30.)

“The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. Premises liability “is grounded in the possession of the premises and the attendant right to control and manage the premises”; accordingly, “mere possession with its attendant right to control conditions on the premises is a sufficient basis for the imposition of an affirmative duty to act.” But the duty arising from possession and control of property is adherence to the same standard of care that applies in negligence cases. In determining whether a premises owner owes a duty to persons on its property, we apply the *Rowland* factors. Indeed, *Rowland* [*v. Christian* (1968) 69 Cal.2d 108] itself involved premises liability.” (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1159, internal citations omitted.) Some of the factors to consider in determining whether a premises owner owes a duty include: the likelihood of injury to plaintiff, the probable seriousness of such injury, the burden of reducing or avoiding the risk, the location of the land, and the possessor’s degree of control over the risk-creating condition are among the factors to be considered by the trier of fact in evaluating the reasonableness of a defendant's conduct.” (*Sprecher v. Adamson Cos.* (1981) 30 Cal.3d 358, 372.)

Defendant Bryan argues he owed Plaintiff no duty to protect or warn against the alleged dangerous condition because the danger was open and obvious.

“A harm is typically not foreseeable if the ‘dangerous condition is open and obvious.’ [Citation.] “‘Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition.’ [Citation.] In that situation, owners and possessors of land are entitled to assume others will “perceive the obvious” and take action to avoid the dangerous condition.’” (*Nicoletti v. Kest* (2023) 97 Cal.App.5th 140, 145-146; *Krongos v. Pacific Gas & Electric Co.* (1992) 7 Cal.App.4th 387, 393 [holding that “if a danger is so apparent that the invitee can reasonably be expected to notice it and protect against it, the condition itself constitutes adequate warning”].) In other words, “foreseeability of harm is typically absent when a dangerous condition is open and obvious.” (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 447.) “[O]wners and possessors of land are entitled to assume others will ‘perceive the obvious’ and take action to avoid the dangerous condition.” (*Ibid.*)

For example, “the presence of railroad tracks is a warning of an open and obvious danger[, as] ‘[a] railroad track upon which trains are constantly run is itself a warning to any person who has reached years of discretion, and who is possessed of ordinary intelligence, that it is not safe to walk upon it, or near enough to it to be struck by a passing train. . . .’ [Citations.]” (*Christoff v. Union Pacific Railroad Co.* (2005) 134 Cal.App.4th 118, 126 [affirming order granting summary judgment in favor of railroad company where the plaintiff was injured by a passing train, while attempting to walk along a railroad bridge over a creek].) Similarly, rainwater flowing down a driveway is an open and obvious danger, as “[i]t is a matter of common knowledge among children and adults that wet concrete is slippery and that, when on a slanting incline’ such as a driveway, ‘it does not provide a safe footing.’ [Citation.]” (*Nicoletti v. Kest* (2023) 97 Cal.App.5th 140, 146 [finding no duty to warn].)

“[T]he ‘obvious danger’ exception to a landowner’s ordinary duty of care is in reality a recharacterization of the former assumption of the risk doctrine, i.e., where the condition is so apparent that the plaintiff must have realized the danger involved, he assumes the risk of injury even if the defendant was negligent. [Citation.] . . . [T]his type of assumption of the risk has now been merged into comparative negligence.” (*Summer J. v. United States Baseball Federation* (2020) 45 Cal.App.5th 261, 275, *as modified on denial of reh'g* (Mar. 9, 2020).)